भारतीय गैर न्यायिक

भारत INDIA

₹ 500 FIVE HUNDRED RUPEES

पाँच सौ रुपये Rs. 500

INDIA NON JUDICIAL

महाराष्ट्र MAHARASHTRA [illegible] [illegible]

[illegible]

THIS STAMP PAPER FORMS AN INTEGRAL PART OF THE SHARE PURCHASE AGREEMENT DATED 18 [illegible] 2024 EXECUTED BY AND AMONGST [illegible] [illegible] [illegible] [illegible] [illegible] [illegible] [illegible] [illegible] [illegible] [illegible] [illegible] [illegible] [illegible] [illegible] [illegible] [illegible]

1 1 JAN 2024

14863

[illegible] / Annexure – II

AGREEMENT

[illegible]

[illegible] holdings [illegible]

[illegible] capacity [illegible]

[illegible]

Horizon Industrial Parks Pvt Ltd

[illegible]

भारतीय गैर न्यायिक

भारत INDIA

रु. 500

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Rs. 500

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[illegible]

THIS STAMP PAPER FORMS AN INTEGRAL PART OF THE SHARE PURCHASE AGREEMENT DATED 23 JANUARY 2024 EXECUTED BY AND AMONGST [illegible] HOLDINGS LTD, [illegible] PRIVATE LIMITED AND [illegible] PRIVATE LIMITED.

11 JAN 2008

1264

[illegible]

AGREEMENT

[illegible]

11 JAN 2008 [illegible]

[illegible]

12/01/2008

भारतीय गैर न्यायिक

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पाँच सौ रुपये

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THIS STAMP PAPER FORMS AN INTEGRAL PART OF THE SHARE PURCHASE AGREEMENT DATED 18 JANUARY 2024 EXECUTED BY AND AMONGST ASC ASIA URBAN HOLDINGS LTD, [illegible] [illegible] LIMITED AND HORIZON INDUSTRIAL PARKS PRIVATE LIMITED.

11 JAN [illegible]

14365

[illegible] / Annexure - II

AGREEMENT

[illegible]

भारतीय गैर न्यायिक

भारत INDIA

रु. 500

FIVE HUNDRED RUPEES

पाँच सौ रुपये

Rs. 500

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महाराष्ट्र MAHARASHTRA

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[illegible]

THIS STAMP PAPER FORMS AN INTEGRAL PART OF THE SHARE PURCHASE AGREEMENT DATED [illegible] JANUARY 2023 EXECUTED BY AND AMONGST [illegible] HOLDINGS [illegible] LIMITED, [illegible] PRIVATE LIMITED AND [illegible] INDUSTRIAL PARKS PRIVATE LIMITED.

11 JAN [illegible]

14368

[illegible] / Annexure-II

AGREEMENT

[illegible]

DATED 18 JANUARY 2024

SHARE PURCHASE AGREEMENT

AMONGST

BRE ASIA URBAN HOLDINGS LTD

as the Seller

AND

HORIZON INDUSTRIAL PARKS PRIVATE LIMITED

as the Purchaser

AND

PANVEL WAREHOUSING PRIVATE LIMITED

as the Company

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SHARE PURCHASE AGREEMENT

This Share Purchase Agreement ("Agreement") is executed on this [illegible] day of [illegible] ("Execution Date") at Mumbai, Maharashtra, India by and amongst:

I. [illegible] HOLDINGS LTD, a company incorporated under the laws of Mauritius, having its registered office at [illegible] Corporate Services (Mauritius) Limited, Level [illegible], Tower [illegible], 1 Exchange Square, Wall Street, Ebene, Mauritius having Permanent Account Number: [illegible] and registered as a foreign venture capital investor with the Securities and Exchange Board of India (hereinafter referred to as the "Seller", which expression shall, unless repugnant to the context or meaning thereof, include its successors and permitted assigns) of the FIRST PART;

II. [illegible] PRIVATE LIMITED, a company incorporated under the Companies Act 2013, having its registered office at Tower [illegible], [illegible] Floor, [illegible], One World Centre, [illegible] Marg, [illegible] Road, Mumbai, Maharashtra [illegible], India and having Permanent Account Number: [illegible] (hereinafter referred to as the "Purchaser", which expression shall, unless repugnant to the context or meaning thereof, include its successors and permitted assigns) of the SECOND PART; and

III. [illegible] PRIVATE LIMITED, a company incorporated under the Companies Act 2013 having its registered office at Tower [illegible], [illegible] Floor, [illegible], One World Centre, [illegible] Marg, [illegible] Road, Mumbai, Maharashtra [illegible], India and having Permanent Account Number: [illegible] (hereinafter referred to as the "Company", which expression shall, unless repugnant to the context or meaning thereof, include its successors and permitted assigns) of the THIRD PART.

The Purchaser, the Seller and the Company shall hereinafter be referred to individually as a "Party" and collectively as the "Parties."

WHEREAS:

A. The authorised share capital of the Company is INR [illegible] (Indian Rupees [illegible]) divided into [illegible] equity shares of INR 10 (Indian Rupees Ten) each. As on the Execution Date, the issued, subscribed and paid-up share capital of the Company is INR [illegible] (Indian Rupees [illegible]) divided into [illegible] equity shares of INR 10 (Indian Rupees Ten) each, fully paid up.

B. As on the Execution Date, the Seller holds [illegible] equity shares of the Company representing [illegible] of the issued and fully paid-up equity share capital of the Company.

C. The Seller is desirous of selling and the Purchaser is desirous of purchasing the Sale Shares (as defined hereinafter) on the terms and conditions contained in this Agreement and accordingly, the Parties are entering into this Agreement to record the terms and conditions of the sale and purchase of the Sale Shares.

NOW THEREFORE, in consideration of the foregoing and other good and valuable consideration, the receipt and adequacy of which are hereby expressly acknowledged, the Parties, intending to be legally bound, hereby agree as follows:

1. AGREEMENT TO SELL AND PURCHASE THE SALE SHARES

1.1 In reliance of the representations and warranties of the Seller, the Purchaser agrees to purchase [illegible] equity shares of the Company representing [illegible] of the equity share capital of the Company ("Sale Shares"), for a consideration equal to the Purchase Consideration, and the Seller agrees to sell to the Purchaser the Sale Shares free and clear from all Encumbrances.

1.2 The consideration payable by the Purchaser to the Seller for the acquisition of the Sale Shares shall be INR [illegible] (Indian Rupees [illegible]) ("Purchase Consideration"), subject to [illegible] deductions at source.

2. CLOSING

2.1 The transfer of the Sale Shares pursuant to this Agreement shall occur at the registered office of the Company on a date which is on or after the Execution Date as identified by the Purchaser ("Closing Date"), which shall in any event be within 30 (Thirty) Business Days from the Execution Date.

2.2 On the Closing Date, the following events shall take place:

(i) the Company shall have obtained and delivered to the Purchaser a valuation report from an independent chartered accountant with respect to the value of the Sale Shares in accordance with Rule 11UA of the Income Tax Rules 1962.

(ii) the Purchaser shall remit the Purchase Consideration to the bank account specified in writing by the Seller ("Seller Bank Account") by way of wire transfer or such other method as may be acceptable to the Purchaser and the Seller. The Seller Bank Account details are set out as follows:

Seller:

Beneficiary : [illegible]

Bank : The Hongkong and Shanghai Banking Corporation Limited

Address : [illegible] Mahatma Gandhi Road, Fort, [illegible] Mumbai 400 001, Maharashtra, India

Account No. : [illegible]

Currency : INR

IFSC Code : [illegible]

SWIFT : [illegible]

(iii) Simultaneously, upon the receipt of evidence of remittance by the Purchaser of the Purchase Consideration into the Seller Bank Account in the manner set out in Clause 2.2(ii) (Closing) above, the Seller shall deliver duly executed irrevocable instructions and such other documents as may be necessary to the depository participant, instructing the depository participant to credit the Sale Shares to the demat account of the Purchaser (details of which demat account shall be provided by the Purchaser to the Seller at least 1 (one) Business Day prior to the Closing Date).

(iii) the board of directors of the Company ("Board") shall, and the Seller and the Company shall cause the Board to, convene a meeting and pass the following resolutions and provide certified copies of such resolutions to the Purchaser and the Seller:

(i) approving and taking on record the transfer of the Sale Shares by the Seller to the Purchaser, free from any Encumbrances;

(ii) approving relevant entries in the register of members of the Company to record the transfer of the Sale Shares to the Purchaser.

(iv) the Company shall provide certified copies of the relevant updated statutory registers of the Company reflecting the Purchaser as the owner of the Sale Shares; and

(v) the Purchaser and the Seller shall execute the deed of adherence (in the form annexed as schedule [illegible] to the Shareholders' Agreement dated 12 January 2020 (as amended, modified and/or supplemented from time to time) executed by and among the Seller, [illegible] Limited and the Company; and deliver a copy of the executed deed of adherence to the Company.

3.4 All actions contemplated under Clause 3.3 (Closing Actions) when undertaken ("Closing") shall be deemed to have occurred simultaneously and Closing in [illegible] shall not be deemed to have occurred unless all such actions are completed.

4 POST-CLOSING ACTIONS

4.1 The Seller and the Company shall provide the Purchaser with the executed copies of all supporting documents (required under the extant foreign exchange laws of India) for the filing of the Form FC-TRS on the FIRMS portal (or any such other designated portal) within 15 (fifteen) days from the Closing Date in respect of the Sale Shares to be transferred by the Seller to the Purchaser.

4.2 Subject to the receipt of all relevant information and documentation from the Seller and the Company, within 60 (sixty) days from the Closing Date, the Purchaser shall file the Form FC-TRS along with the supporting documents (as agreed in writing between the Seller and the Purchaser, and duly executed) in the relevant Form on the FIRMS portal (or any such other designated portal) of the Reserve Bank of India to report the transfer of the Sale Shares in accordance with the Agreement, and the Purchaser shall deliver to the Seller and the Company, a copy of: (a) the Form FC-TRS, as filed, along with all the supporting documents and the screen shot of the FIRMS portal reflecting the submission of the filing; and (b) the acknowledgement from the authorised dealer bank of the Purchaser confirming that the Form FC-TRS has been duly filed, as required under applicable law.

4.3 The Seller and the Company shall provide the Purchaser with the executed copies of all supporting documents (required under the extant foreign exchange laws of India) for the filing of the Form DI on the FIRMS portal (or any such other designated portal) within 15 (fifteen) days from the Closing Date in respect of the Sale Shares to be transferred to the Purchaser from the Seller.

4.4 Subject to the receipt of all relevant information and documentation from the Seller and the Company, within 30 (thirty) days from the Closing Date, the Purchaser shall file the Form DI along with the supporting documents (as agreed in writing between the Seller and the Purchaser, and duly executed) in the relevant Form on the FIRMS portal (or any such other designated portal) of the Reserve Bank of India, to report the purchase of the Sale Shares by the Purchaser from the Seller in accordance with the Agreement, and the Purchaser shall deliver to the Seller and the Company, a copy of: (a) the Form DI, as filed, along with all the supporting documents and has caused each of the [illegible] portal reflecting due approval for the filing; and (b) the acknowledgement from the authorized dealer bank of the Purchaser confirming that the Form [illegible] has been duly filed as required under applicable law.

3.5 Within 30 (Thirty) days from the Closing Date, the Purchaser shall submit a declaration (in the form along with the supporting documents) [illegible] in writing between the Seller and the Purchaser, and duly executed by the relevant Party(ies) on the Foreign Investment Facilitation Portal (or any such other designated portal) to report the purchase of the Sale Shares by the Purchaser from the Seller in accordance with this Agreement, and the Purchaser shall deliver to the Seller and the Company, a copy of the documentary evidence(s) [illegible] along with all the supporting documents and the screen shot of the Foreign Investment Facilitation Portal reflecting the approval for the filing.

4. REPRESENTATIONS AND WARRANTIES

4.1 Each Party hereby, severally and not jointly, represents and warrants to the other Parties hereto that, as of the Execution Date and Closing Date:

(i) such Party has the full power and authority to enter into, execute and deliver this Agreement and to perform the transactions contemplated hereby; and such Party is duly incorporated, registered and validly existing under the laws of its jurisdiction;

(ii) such Party has duly and validly executed this Agreement, and it constitutes legal, valid and binding obligations of such Party, enforceable against such Party in accordance with its terms;

(iii) the execution and delivery by such Party of this Agreement and the performance by such Party of the transactions contemplated hereby have been duly authorized by all necessary corporate or other actions of such Party;

(iv) the execution, delivery and performance by such Party of this Agreement and the transactions contemplated hereby do not and will not:

(a) violate, conflict with, result in a breach of the terms, conditions or provisions of, result in the creation of any Encumbrance(s) on the Sale Shares or constitute a default, an event of default (or an event which with the giving of notice or lapse of time or both, would constitute an event of default) or an event creating rights of acceleration, modification, termination or cancellation or a loss of rights, under any or all of the following:

A. any contract to which such Party is a party;

B. any governmental approval to which such Party is a party or to which such Party is bound;

C. any consent, or governmental approvals, [illegible] would have required to give effect to and complete the transactions contemplated in this Agreement;

D. any applicable laws; or

(b) constitute an act of bankruptcy, preferential, insolvency or fraudulent conveyance in relation to such Party under any bankruptcy, act or other applicable law; and

(vi) [illegible] contemplated under this Agreement, no consent or governmental approval or filing with any person is required on the part of such Party in connection with the execution, delivery and performance of this Agreement, the compliance by such Party with any of the provisions hereof, or the consummation of the transactions contemplated hereby.

4.2 The Seller hereby represents and warrants to the Purchaser, that each of the following representations, warranties and statements are true and correct as of the Execution Date and Closing Date:

(i) The Seller is the legal and beneficial owner of the Sale Shares and the Seller has good and marketable title to the Sale Shares, free and clear of any and all Encumbrances, options, and claims whatsoever, with full right and authority to sell and deliver the same to the Purchaser, under this Agreement, and upon delivery of the Sale Shares shall convey to the Purchaser good and marketable title to the Sale Shares free and clear of all Encumbrances.

(ii) Each of the Sale Shares have been duly and validly issued by the Company. All corporate actions and compliances under applicable law required to be performed by the Company in connection with such issuances have been duly performed.

(iii) There are no proceedings under any applicable insolvency, reorganization, or similar applicable laws concerning the Seller and/or the Company and no events have occurred which, under applicable law, would justify any such proceedings. The Seller and/or the Company are not insolvent or bankrupt and have been paying their debts as they fall due.

(iv) The Seller has not taken any action that would constitute a violation, or implicate the Purchaser in a violation, of the laws of any jurisdiction in which the Company conducts business, or of the U.S., or of the United Kingdom, including without limitation all [illegible] regulations, Anti-Corruption Laws and Money Laundering Laws, and the duly [illegible] timely filing of appropriate reports, statements, returns and all [illegible] from appropriate Governmental Authorities in relation to the Company. The Seller is not in default with respect to any laws and orders applicable to and/or applicable upon them in relation to the Company.

(v) Compliance with Economic Sanctions

The Seller is not subject to any US Economic Sanctions (or is named on any list of prohibited persons, entities or jurisdictions maintained and administered by OFAC) or the Reserve Bank of India.

4.3 For the purposes of this Agreement:

(i) "**Anti-Corruption Laws**" means any law of any jurisdiction in which the Company conducts business, or of the United States, or of the United Kingdom, including without limitation, the (Indian) Prevention of Corruption Act, (Central Act No. 49/1988), the Foreign Corrupt Practices Act of 1977, as amended, and the U.K. Bribery Act of 2010.

(ii) "**Encumbrance**" means any encumbrance or adverse claim as to title or possession including any mortgage, pledge, charge, lien, security interest, option, pre-emptive right, or any restrictions imposed under contract, applicable law or otherwise.

(iii) "**Governmental Authority**" means any (a) national, provincial or local government or political subdivision or department thereof of any jurisdiction; (b) any governmental administrative or regulatory body, commission, board, bureau, agency or instrumentality, or any court, arbitrator, [illegible] in each case with applicable jurisdiction; [illegible] or any stock exchange [illegible].

(17) "Money Laundering Laws" means applicable financial recordkeeping and reporting requirements of the [illegible] Act 2001, as amended, the U.S. Currency and Foreign Transactions Reporting Act of 1970, as amended, the U.S. Money Laundering Control Act of 1986, as amended and all money laundering related laws of other jurisdictions where the Company [illegible] business or owns assets;

(18) "U.S." means the United States of America; and

(19) "US Sanctions Regulations" means any sanctions administered by the Office of Foreign Assets Control of the United States Treasury, including any "Specially Designated Nationals and Blocked Persons" as provided [illegible].

8 GOVERNING LAW, JURISDICTION AND DISPUTE RESOLUTION

8.1 This Agreement shall be governed in all respects by the laws of [illegible].

8.2 Any dispute arising out of or in connection with this agreement, including any question regarding its existence, validity or termination, shall be referred to and finally resolved by arbitration administered by the Singapore International Arbitration Centre in accordance with the Arbitration Rules of the Singapore International Arbitration Centre ("SIAC Rules") for the time being in force, which rules are deemed to be incorporated by reference in this Clause 8 (Governing Law, Jurisdiction and Dispute Resolution). In the event of such arbitration:

(1) the seat and venue of the arbitration shall be Singapore;

(2) the tribunal shall consist of 3 (three) arbitrators, 1 (one) to be appointed by the claimant(s), 1 (one) to be appointed by the respondent(s), and the third to be appointed by the 2 (two) arbitrators. If either the claimant(s) on one hand, and the respondent(s) on the other hand, fails to appoint an arbitrator as set out in this Clause 8.2(2) (Governing Law, Jurisdiction and Dispute Resolution) the arbitrator of such party shall be appointed in accordance with the SIAC Rules;

(3) the language of the arbitration shall be English;

(4) Arbitration awards shall be rendered in writing and shall be final and binding on the Disputing Parties, and may be specifically enforced by any court of competent jurisdiction;

(5) in respect of any court proceedings commenced in Singapore under the International Arbitration Act 1994 in relation to arbitration, the Parties agree (a) to commence such proceedings before the Singapore International Commercial Court (the "SICC"), and (b) that in the event such proceedings shall be heard and administered by the SICC;

(6) the tribunal shall be entitled to decide on and apportion the costs and reasonable expenses (including reasonable fees of counsel retained by the Parties) incurred in the arbitration.

(vii) the existence and content of any arbitration proceedings and any award rendered shall be confidential between the Parties, [illegible] of Clause 8.5 (Confidentiality) hereof;

(viii) the existence or subsistence of a dispute between the Parties, or the commencement or continuation of arbitration proceedings, shall not, in any manner, prevent or postpone the performance of those obligations of the Parties under this Agreement which are not in dispute, and the arbitrator(s) shall give due consideration to such performance, if any, in making a final award;

(ix) the provisions of Part I of the [illegible] Arbitration and Conciliation Act 1996 (save and except Sections 9, 27 and 37(1)(b) thereof) shall not be applicable to, and shall be specifically excluded from, any and all arbitration proceedings conducted in accordance with this Clause 7 (Governing Law, Jurisdiction and Dispute Resolution);

(x) each Party shall participate in good faith to reasonably expedite (to the extent practicable) the conduct of any arbitral proceedings commenced in accordance with this Clause 7 (Governing Law, Jurisdiction and Dispute Resolution); and

(xi) the Parties agree to the consolidation of arbitration proceedings in relation to any disputes arising under this Agreement.

7.3 Nothing shall preclude a Party from seeking interim equitable or injunctive relief in India. The pursuit of equitable or injunctive relief shall not be a waiver of the rights of the Parties to pursue any other remedy or relief through the arbitration described in this Clause 7 (Governing Law, Jurisdiction and Dispute Resolution).

8. MISCELLANEOUS

8.1 This Agreement may be terminated by the Purchaser or the Seller [illegible] at any time prior to the Closing Date. The termination of this Agreement shall not relieve any Party of any obligations or liabilities accrued prior to the date of termination or affect any Party of any right (including remedies) accrued prior to the date of termination. Clause 4 (Representations and Warranties), Clause 7 (Governing Law, Jurisdiction and Dispute Resolution) and Clause 8 (Miscellaneous) shall survive the termination of this Agreement.

8.2 No rights, liabilities or obligations under this Agreement shall be assigned by any Party without the prior written consent of the other Parties, provided however, that notwithstanding the above, the Purchaser shall be entitled to assign (without the prior consent of the other Parties) the whole or any part of this Agreement to [illegible] or any of its affiliates. If prior to Closing, [illegible]

8.3 No change, alteration, [illegible], modification or addition to this Agreement shall be valid unless made in writing and properly executed by the Parties hereto.

8.4 Each Party shall be responsible for obtaining any approvals or consents required to be obtained by it to consummate the transactions contemplated herein.

8.5 Each Party shall keep all information and other materials in relation to the transactions contemplated under this Agreement and the other Parties confidential and shall not disclose such information except as required under applicable law or requested by any governmental or regulatory authority. Each of the Seller and the Purchaser shall be free to disclose such information to its [illegible] and [illegible] consultants, advisors, affiliates, or agencies.

8.16 Each Party shall [illegible] this Agreement and the [illegible] for the Seller.

8.17 This Agreement may be executed in any number of counterparts [illegible]

8.18 The Parties shall execute such documents [illegible] this Agreement.

8.19 Notices

(a) Unless otherwise stated, all notices, approvals, instructions, demands and other communications [illegible]

(i) If to the Seller:

Address: [illegible]

Telephone: [illegible]

Email: [illegible]

With a copy (which shall not constitute a notice) to: [illegible]

Address: Khaitan & Co. [illegible] One World Center, [illegible] Senapati Bapat Marg, Lower Parel, Mumbai 400 013, Maharashtra, India

Email: [illegible]

Attention: [illegible]

(ii) If to the Customer:

Address: One World Center, Unit No. [illegible] 841, Jupiter Textile Mills, Senapati Bapat Marg, Mumbai 400 013, Maharashtra, India

Telephone: [illegible]

Email: [illegible]

With a copy (which shall not constitute a notice) under this Clause 8.9 (Notices) to:

Address: Khaitan & Co, 10th Floor, Tower 1, One World Centre, Senapati Bapat Marg, Lower Parel, Mumbai 400 013, Maharashtra, India

Email: [illegible]

Attention: [illegible]

(ii) To the Purchaser:

Address: One World Centre, [illegible], Tower [illegible], [illegible] Senapati Bapat Marg, Mumbai 400 013, Maharashtra, India

Email: [illegible]

Attention: [illegible]

With a copy (which shall not constitute a notice) under this Clause 8.9 (Notices) to:

Address: Khaitan & Co, 10th Floor, Tower 1, One World Centre, Senapati Bapat Marg, Lower Parel, Mumbai 400 013, Maharashtra, India

Email: [illegible]

Attention: [illegible]

(b) A Party may change or supplement the addresses given above, or designate additional addresses, for the purposes of this Clause 8.9 (Notices), by giving the other Party written notice of the new address in the manner set forth above, and such change shall only come into effect [illegible] the actual receipt of such notice by the relevant Party.

(Following this page are the signature pages)

IN WITNESS WHEREOF, THE PARTIES HERETO HAVE CAUSED THIS AGREEMENT TO BE DULY EXECUTED AND DELIVERED BY THEIR DULY AUTHORISED REPRESENTATIVES AS OF THE DAY AND YEAR FIRST HEREINABOVE WRITTEN.

Signed and delivered for and on behalf of

[illegible] ASIA [illegible] LTD

Name: [illegible]
Title: Authorised signatory, authorised per resolution of the board of directors dated [illegible] 2024

Signature page to the Share Purchase Agreement entered into on the [illegible] 2024 among [illegible] Holdings Ltd, [illegible] Private Limited and [illegible] Private Limited

IN WITNESS WHEREOF THE PARTIES HERETO HAVE CAUSED THIS AGREEMENT TO BE DULY EXECUTED AND DELIVERED BY THEIR DULY AUTHORISED REPRESENTATIVES AS OF THE DAY AND YEAR FIRST HEREINABOVE WRITTEN.

[illegible]

[illegible]

[illegible]

[illegible]

IN WITNESS [redacted] THE PARTIES HERETO HAVE CAUSED THIS AGREEMENT TO BE DULY EXECUTED AND DELIVERED BY THEIR DULY AUTHORISED REPRESENTATIVES AS OF THE DAY AND YEAR FIRST HEREINABOVE WRITTEN.

Signed and delivered for and on behalf of

[illegible] WAREHOUSING PRIVATE LIMITED

Name: [illegible]

Title: [illegible]